

		a declaration or other evidence showing this court is the court having jurisdiction over these proceedings. Similarly, it is unclear this court has personal jurisdiction over Brimm sufficient to allow it to make the requested order directing Brimm to take certain actions. The court's file shows the petition initiating these proceedings and this motion were electronically served on an attorney (Eric R. Gruber) on Brimm's behalf. Typically, personal service of a case initiating document on the defendant or respondent is necessary to confer jurisdiction over the defendant or respondent. The court acknowledges service on counsel may be sufficient in proceedings such as these. (See <i>Miranda v. 21st Century Ins. Co.</i> (2004) 117 Cal.App.4th 913, 927-928.) Mobilitas, however, has not presented sufficient evidence to show <i>Miranda</i> applies in this case so as to provide the court with jurisdiction to make the requested order. Mobilitas should submit a declaration or other evidence showing this court has jurisdiction over Brimm. Any supplemental declarations or other filings addressing these issues must be filed and served by July 1, 2026. Based on the foregoing, the motion is CONTINUED as set forth above. Mobilitas's counsel is ordered to give notice of this ruling.
7	<i>In re: 23726 Dolphin Cover, Laguna Niguel, CA 92677</i> 2026-01541675	<u><i>Please see the above notice regarding oral argument on June 25, 2026</i></u> On April 9, 2026, the court heard the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale filed by petitioner Prestige Default Services, LLC (Petitioner). Petitioner filed the petition under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on or about June 24, 2024, regarding the property located at 23726 Dolphin Cove, Laguna Niguel, California 92677 (Property). After paying off the trust deed and all senior liens, the claim of Foothill Town Homes Community Association, and Petitioner's fees and expenses, Petitioner seeks to deposit the surplus funds of \$623,084.12 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner is unable to distribute these surplus funds. On April 9, 2026, the court granted the petition and ordered Petitioner to deposit the surplus funds with the court. On

	April 14, 2026, the court signed an order granting the petition. On or about May 28, 2026, Petitioner deposited the surplus funds with the court, and therefore Petitioner has now been discharged from the responsibility to distribute those funds. In granting the petition, the court scheduled today's hearing to resolve any and all claims to the surplus funds and ordered any person with a claim to some or all of the funds to file a claim at least 15 days before the hearing. On or about April 13, 2026, the clerk gave notice of today's hearing to all parties identified in the petition as potentially have a claim to some or all of the surplus funds. As of June 22, 2026, the court has not received any claim to the surplus funds. Accordingly, the surplus funds shall stay on deposit with the clerk until such time as a claim to the funds is duly asserted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"] Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that has remained unclaimed by the owner for more than three years escheats to this state"].) Having received no claims to the surplus funds, the court hereby sets an order to show cause hearing as to why the surplus funds on deposit with the court should not escheat to the court. The order to show cause hearing is scheduled for Monday, July 2, 2029, at 9:30 a.m., in Department C23. <u>The clerk is directed to serve notice of this ruling on all parties upon whom the clerk served notice of the court April 9th ruling.</u>
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